

HBT3ATI2

Zarrab - Direct

1 banks and Iranian foreign exchange offices, and was bringing it
2 to Aktif Bank, and I was exchanging it to tomans and giving it
3 to the customers. To the Iranian customers in Iran, as tomans.

4 Q. So --

5 A. I want to correct something in the recording. Mr. Agajooni
6 was sending money to the Iranian banks -- from the Iranian
7 banks. Yes, sir.

8 Q. So. Let's break that down a little bit. First of all, you
9 referred to something called a toman. What is that?

10 A. It is the Iranian money.

11 Q. Why did Agajooni need you to get the money out of Iran?

12 THE INTERPRETER: Once more, please.

13 Q. Why did Agajooni need you to get the money?

14 A. Because of the sanctions, Iranians were not allowed to
15 access their own money. There were limited persons who can get
16 their money out of there, and I was one of them.

17 Q. Now, you also mentioned Aktif Bank; is that right?

18 A. Yes, sir.

19 Q. I believe your testimony was that you received money from
20 Agajooni at Aktif Bank; is that right?

21 A. The money sent by Mr. Agajooni came to Aktif Bank, and I
22 was able to take the money out of Aktif Bank.

23 Q. What is Aktif Bank?

24 A. It is an investment bank in Turkey.

25 Q. And the sanctions that you testified about before, do you

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1 cold wind" in your relationship?

2 A. Mr. Najafzadeh did try to circumvent me and try to work
3 with his own children. Because they violated the principle of
4 working only with me, so I needed the urge to reinforce my
5 customer base.

6 Q. Did that cause you to have another discussion with
7 Rajaeieh?

8 A. Yes, we made a meeting -- we had a meeting.

9 Q. At that time, did you agree to do transactions on behalf of
10 Sarmayeh Exchange?

11 A. He told me that they have a very high volume of funds; so I
12 accepted.

13 Q. Now, at the time you agreed to work with Sarmayeh Exchange,
14 were you still processing transactions through Aktif Bank in
15 Turkey?

16 A. Aktif Bank, at that period of time, had stopped my
17 transactions.

18 Q. Do you have an understanding of why they stopped your
19 transactions?

20 A. They received a warning from the United States, and they
21 stopped brokering those transactions, and they were partly
22 working directly by themselves.

23 Q. When you say they were working directly, what do you mean?

24 A. Aktif Bank was working directly with the Iranians, and I
25 was eliminated.

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1 bars to Bin Sabt into the account of a company that's
2 affiliated with Royal Group in Turkey. I will give an example
3 of Finansbank here.

4 Q. What is Finansbank?

5 A. Finansbank is a Turkish bank located in Turkey. In there,
6 there is an account for Royal Group.

7 Q. What happens next?

8 A. The information between Royal Group and Bin Sabt as to this
9 sale that was agreed upon, including who would be the receiver,
10 the amount and the unit price would be put in writing as a pro
11 forma.

12 Q. Then what?

13 A. There is a Bank of Baroda in Dubai. And the Bank of Baroda
14 would have an account for Bin Sabt. I will draw the money
15 movement with the red marker. Bank of Baroda would send an
16 instruction to Finansbank. And an amount that would be for the
17 100 kilograms of gold would be sent from the Bin Sabt account
18 into the Royal account. Let's say \$15 million. We would
19 receive plus 15 million in our account, and \$15 million would
20 be debited from Bin Sabt's account.

21 And as for the movement of the goods, I will draw that
22 in with a blue marker. In exchange for that payment, then the
23 Royal Group would send 100 kilograms of gold, and in exchange
24 for that, there would be a shipment documentation for this.
25 This is gold from oil.

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1 the point where it could leave Halkbank. In fact, one of the
2 methods that was designed is this, because NIOC would not be
3 able to do this directly.

4 Q. Why not?

5 A. Due to the embargo and the sanctions of the United States,
6 as well as the embargoes and sanctions and regulations of the
7 United Nations.

8 Q. Typically, how would you get the money out of Halkbank?

9 A. I will continue to draw, please. Rona would have an
10 account in Denizbank in Turkey in a different bank. Either in
11 Euros or the Turkish lira, the money would be transferred from
12 the Roman account in Halkbank and to its own account in
13 Denizbank.

14 Q. What is Denizbank?

15 A. The Turkish bank.

16 Q. What happens after this?

17 A. Halkbank would send a message to Denizbank, and money would
18 be removed or deducted from Rona's account at Halkbank and
19 would arrive at its account in Denizbank.

20 Q. Then what would happen?

21 A. And now the Royal Bank would get back the money again. So
22 within this money movement, the international money order that
23 Sarmayeh had given to Sarmayeh Exchange would arrive in my
24 office. This is a payment order.

25 Q. Would you do anything with that payment order?